

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 07/17/2026

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Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

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Zoom hearing information

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ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1](https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1)

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02814

CASE NAME: NA WANG VS. SETH WIENER

HEARING IN RE: OF INTENTION TO MOVE TO VACATE SANCTIONS AND TO SET ASIDE THE
DISMISSAL / CONT'D FROM 6/26/2026 PER M/O

FILED BY: WANG, NA

TENTATIVE RULING:

On December 19, 2025, the court granted Defendant Seth W. Weiner's Motion for Terminating Sanctions and ordered the case dismissed with prejudice.

Before the court is Plaintiff Na Wang's Motion to Set Aside Dismissal, and Motion to

Vacate Orders and Sanctions, filed May 11, 2026.

Plaintiff's Request for Judicial Notice filed May 11, 2026 is granted. Judicial notice is not necessary for the court to take notice of its own orders and of pleadings in the instant court file.

Defendant's Request for Judicial filed June 12, 2026 is also granted.

Plaintiff's motions fail to state grounds upon which the court can order relief.

Relief is unavailable under Code of Civil Procedure (CCP) § 437(b) for several reasons. First, Plaintiff did not file her motion until May 11, 2026 --four months and 22 days after the order dismissing the case with prejudice on December 29, 2026. Courts recognize that a delay exceeding three months is unreasonable where the litigant provides no evidence to justify the delay. (*Minick v. City of Petaluma* (2026) 3 Cal. App. 5th 15, 35. Here the Plaintiff offers no evidence justifying her delay in filing.

In addition, Plaintiff does not offer any excusable neglect, but instead re-asserts her failure to appear at a court-ordered deposition date as due to "equipment failure." Plaintiff's explanation was not found credible by the court at the December 19, 2025 hearing and in any event it has no bearing on why it took four months and 22 days to file her instant motion. Plaintiff's "equipment failure" argument does not constitute excusable neglect for filing the instant motions on May 11, 2026.

Plaintiff cannot obtain relief pursuant to CCP § 663 because that section addresses setting aside a judgment, not a dismissal. Even if this were a judgment, Section 663 requires a Notice of Intention to be filed and served within 15 days after entry of dismissal. Defendant served the order dismissing the action electronically on December 19, 2025 and served notice of the entry of the order of dismissal on Plaintiff by electronic service on December 30, 2025. See Notice of Entry of Dismissal filed December 30, 2025. Plaintiff filed her Notice of Intention 57 days later on February 25, 2026. See Plaintiff's Notice of Intention to Move to Vacate Sanctions and Set Aside the Dismissal, filed February 25, 2026. Thus, even if this were the proper vehicle for Plaintiff her Notice of Intention was untimely.

In addition, Plaintiff's Notice of Intention did not "designate the grounds upon which the motion will be made and specifying the particulars in which the legal basis for the decision is not consistent with or supported by the facts," as required by Section

663(a).

The court agrees that the Plaintiff's motions are the equivalent of a Motion for Reconsideration under CCP § 1008. However, Plaintiff has failed to seek reconsideration within ten days of the order of dismissal, as required by the statute. In addition, Plaintiff fails to assert "new or different facts, circumstances, or law," as required by Section 1008.

Plaintiff's Motion to Set Aside Dismissal, and Motion to Vacate Orders and Sanctions are **denied**.

2. 9:00 AM CASE NUMBER: C22-02814
CASE NAME: NA WANG VS. SETH WIENER
HEARING IN RE: TO VACATE ORDER AND SANCTIONS / CONTD FROM 6/26/2026 PER M/O OF 6/26/2026
FILED BY: WANG, NA
TENTATIVE RULING:

See Line 1.

3. 9:00 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
*HEARING ON MOTION IN RE: TO TRANSFER AND CONSOLIDATE CASES
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiffs Aleksandra Kaczmarczyk (aka Schakanovich), Hasan Schakanovich, and Aldvin Schakanovich's Motion to Transfer and Consolidate Cases.

Plaintiff's Request for Judicial Notice of the Order After Hearing of the Stanislaus County Superior Court is **granted**. (Evid. Code §452 (d).) The Court can and will take judicial notice of the existence of the documents, as well as the truth of facts asserted therein as it is an Order of another court. (*Magnolia Square Homeowners Ass'n v. Safeco Ins. Co.* (1990) 221 Cal.App.3d 1049, 1056.)

Factual and Procedural Background

This action relates to issues surrounding the purchase of residential property located at 11 Halten Court (the "Property") by Plaintiffs in March 2022.

Plaintiffs filed the initial complaint in this matter on October 20, 2023. Defendant Linda Williams was the seller's real estate agent for the transaction. Ms. Williams was employed by Defendant California Compass II, Inc. at all relevant times. (Ms. Williams and Compass California will be referred to as the "Compass Defendants".) The gist of the allegations relates to claims of defects in the Property related to water intrusion and determining who was responsible for disclosing issues related thereto.

One year later, on October 15, 2024, Plaintiffs Aleksandra and Aldvin Schakanovich filed a verified petition in Stanislaus County Superior Court (case no. PR-21-001379) asserting claims arising from a rejected creditor's claim against the Mary Jessie Swanson Revocable Trust (the "Stanislaus Matter"). The Trust had been established in December 2014. The Property was transferred into the Trust shortly thereafter. In December 2021, the trustee of the Trust, petitioned the Stanislaus Court for authorization to sell the Property – which was granted. The sale occurred in March 22 – the sale being the one at issue in this proceeding. It is alleged that the trustee represented there were no material defects in the Property.

Plaintiffs/Petitioners filed a creditor's claim against the Trust, which was rejected in July 2024. That rejection led to the filing of the petition in October 2024. Given that the two cases pertain to the same Property and the same allegations of failure to disclose material defects, Plaintiffs now move to have the Stanislaus Matter transferred to Contra Costa and consolidated with this matter.

Standard

Code of Civil Procedure 403 states, in pertinent part:

A judge may, on motion, transfer an action or actions from another court to that judge's court for coordination with an action involving a common question of fact or law within the meaning of Section 404. ... The court to which a case is transferred may order the cases consolidated for trial pursuant to Section 1048 without any further motion or hearing.

Code of Civil Procedure § 1048 provides:

When actions involving a common question or law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in issue in the actions; it may order all the actions consolidated

and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.

The decision to consolidate is left to the sound discretion of the trial court based on its assessment of various factors, including whether there are common issues of fact or law, and even if there are, whether other factors, such as potential prejudice to one or more parties, delay, confusion or other considerations do not warrant consolidation. (*Todd Steinberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979 ["Code of Civil Procedure section 1048 grants discretion to the trial courts to consolidate actions involving common questions of law or fact. The trial court's decision will not be disturbed on appeal absent a clear showing of abuse of discretion."])

Analysis

Transfer

A motion to transfer shall be “supported by a declaration stating facts showing that the actions meet the standards specified in Section 404.1, are not complex as defined by the Judicial Council and that the moving party has made a good faith effort to obtain agreement to the transfer from all parties to each action.” In determining whether to transfer a matter, the Court must find that the transfer “will promote the ends of justice, with reference to the following standards:

- (1) The actions are not complex;
- (2) Whether the common question of fact or law is predominating and significant to the litigation;
- (3) The convenience of the parties, witnesses, and counsel;
- (4) The relative development of the actions and the work product of counsel;
- (5) The efficient utilization of judicial facilities and staff resources;
- (6) The calendar of the courts;
- (7) The disadvantages of duplicative and inconsistent rulings, orders, or judgments; and
- (8) The likelihood of settlement of the actions without further litigation should coordination be denied.

After reviewing the declaration of counsel and examining the matters presented in the

case, the Court finds that the actions are not complex under the parameters set forth in California Rules of Court 3.400. It is also evident that there are common questions of law and fact that predominate the actions. It would also be more convenient for both the Court and the parties and witnesses for these two actions to move forward in Contra Costa. Given how far this matter has progressed, it is also an efficient use of the Court's resources for the two matters to proceed together in this Court – which will also alleviate any concerns regarding possible inconsistent rulings or orders. Additionally, if there is to be a settlement of these claims – the likelihood of a full resolution of all issues is increased if the two cases are consolidated before this Court.

Good Faith Effort to Obtain Agreement to Transfer

As part of the request to transfer, the moving party must submit a declaration that it made a 'good faith effort to obtain agreement to the transfer from all parties to each action.' (Code Civ. Proc. § 403.) Plaintiff's counsel's declaration indicates that he emailed all counsel in both actions regarding the transfer and consolidation and, to his knowledge, "all Parties to both matters pending in each County have consented to transfer and consolidation." (Wayland Decl. ¶ 14-15.) He attaches the email communication to his declaration. (*Id.* at Ex. 2.)

The email includes a response from Christi Raimondi, counsel for the trustee of the Trust, which indicates that she agreed the two matters should be consolidated, and that she was "pretty sure that the proper jurisdiction is in Contra Costa County since the court there acquired jurisdiction over the matter first." (*Ibid.*) She does note, however, that the parties 'argued the jurisdiction issue before the court in Stanislaus County a few months ago [and the Stanislaus] court found jurisdiction was proper in Stanislaus County."

It appears that the Stanislaus Court, however, changed its ruling. On Reply, Plaintiffs submit an Order After Hearing from the Stanislaus Court which indicates that the Court "finds and **ORDERS** as follows:

- (1) Venue in Stanislaus County is not appropriate. Venue is appropriate in Contra Costa County. Counsel for Petitioner shall file the necessary paperwork to have this matter transferred to Contra Costa County and pay transfer fees.
- (2) Counsel for Petitioner to submit an order after hearing.
- (3) This matter shall be continued for Thursday, August 20, 2026, at 8:30 a.m., in Dept. 22 for compliance hearing regarding confirmation of transfer to Contra Costas County." (RJN Ex. 1.)

The above support's this Court's determination that the Stanislaus Matter should be

transferred to Contra Costa. In fact, it confirms that the Stanislaus Court has already ordered the matter transferred to Contra Costa.

Consolidation

The issues raised in the two actions involve common question of law and fact. It would be in the best interests of the Court as well as the Parties to have the two actions consolidated for all purposes.

Conclusion

Plaintiff's motion to transfer the Stanislaus Matter to Contra Costa County Superior Court is **granted**. Once transferred, the Stanislaus Matter will be consolidated with this action.

4. 9:00 AM CASE NUMBER: C24-01956
CASE NAME: JAMES MARITIME HOLDINGS, INC. VS. MATTHEW MATERAZO
*HEARING ON MOTION IN RE: RECOGNIZE SATISFACTION OF SANCTIONS OBLIGATION
FILED BY: MATERAZO, MATTHEW C.
TENTATIVE RULING:

The parties stipulated and the court ordered that this hearing be **continued** to December 4, 2026 at 9:00 a.m.

5. 9:00 AM CASE NUMBER: C24-02492
CASE NAME: THOMAS KM, LLC VS. KELLY-MOORE PAINT COMPANY, INC.
*HEARING ON MOTION IN RE: ASSIGNMENT ORDER CCP 708.150
FILED BY: THOMAS KM, LLC
TENTATIVE RULING:

The Plaintiff's unopposed motion for Assignment Order is granted.
The court will sign the Proposed Assignment Order lodged with the court on March 19, 2026.

6. 9:00 AM CASE NUMBER: C24-03078
CASE NAME: THALBIR OLI VS. GOVIND SHAHI
HEARING ON DEMURRER TO: RE 1ST AMENDED COMPLAINT
FILED BY: SHAHI, GOVIND K.
TENTATIVE RULING:

Introduction

Before the Court is Defendants GOVIND K. SHAHI; SUSHOVAN SHAHI; SUSHMINA

SHAH; and SANTOSH K. SAH's Demurrer. The Demurrer relates to Plaintiffs THALBIR OLI, and SABRINA HAN's First Amended Complaint filed September 16, 2025 for thirteen business tort related cause of actions. The demurrer is brought against the following six of the 13 causes of action: Seventh Cause of Action for Fraudulent Conversion of Member's Interest in LLC (against Sushovan and Sushimina), Ninth Cause of Action for Breach of Fiduciary Duties (Against Sushmina), Twelfth Cause of Action for Aiding and Abetting a breach of Fiduciary Duties (against Santosh), Thirteenth Cause of Action for Intentional Misrepresentation (against Santosh), Fourteenth Cause of Action for Negligent Misrepresentation (against Santosh), and the Fifteenth Cause of Action for Conspiracy to Defraud, Breach of Fiduciary Duties (against all Defendants).

For the following reasons, the **Demurrer is overruled in its entirety.**

Meet and Confer Requirement

Defendants satisfied their meet and confer requirement regarding their Demurrer in detailing their meet and confer efforts with Plaintiff's counsel in the Declaration of Matthew Schumacher. On October 6 through 8, 2025, the parties exchanged emails and meet and confer letters. (Decl. of Schumacher at ¶¶ 3-5.) Counsel for the parties spoke on the phone on October 10, 2025, and despite their good faith efforts were unable to reach an agreement. (Decl. of Schumacher at ¶ 6.)

Request for Judicial Notice

Only relevant material is a proper subject of judicial notice, even where the Evidence Code provides in mandatory terms that matters be judicially noticed." (*Hayward Area Planning Assn. v. City of Hayward* (2005) 128 Cal.App.4th 176, 182 citing *Mangini v. R.J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063.)

The Court abstains from ruling on the two requests for judicial notice by Plaintiffs because the exhibits were not used in Plaintiffs' opposition and the Court did not consider them in its ruling.

FAC Allegations

The allegations of the FAC are summarized as follows.

Origins of Relationships

OLI and GOVIND both are originally from Nepal. During his social interactions with the people from Nepalese community, OLI became to know GOVIND and became close to him during their various social interactions throughout the past several years. (FAC ¶ 14.) OLI considered GOVIND as his senior guardian and looked to him as a father

figure. (FAC ¶ 15.) In or around end of March 2023, SHAHIS family went to visit OLI in his liquor store in Daly City. During the visit, GOVIND talked about his interest in forming a partnership business with OLI. (FAC ¶ 18.)

GOVIND represented that his daughter SUSHMINA was also interested in running a liquor store business and she was also willing to become a partner, if OLI was interested to join her. (FAC ¶ 19.) Knowing very well about SUSHMINA's unsuccessful business operations ending up with litigation or hostilities with her prior partners, OLI told GOVIND that he would not want to be a partner with SUSHMINA. (FAC ¶ 20.) GOVIND then requested OLI to train SUSHMINA managing a liquor store business. OLI considered SUSHMINA as a sister and would not mind teaching SUSHMINA how to manage a liquor store business if she just wants to learn it from him. (FAC ¶ 23.) However, OLI made it clear about his personal affairs and business affairs as separate and that he did not want to involve SUSHMINA in his business affairs as she needed to learn more about the business. (FAC ¶ 24.)

Purchase of the JUG SHOP

Plaintiffs OLI with assistance of HAN researched several business options and after sifting through their options OLI and Defendant GOVIND then decided to buy the JUG SHOP. (FAC ¶ 27.) OLI's credit score was not good due to his friend's recent nonpayment of car loan for which he had co-signed to help the friend get his car loan. (FAC ¶ 28.) GOVIND suggested HAN sign the lease agreement, and HAN agreed to sign the lease agreement on OLI's request. (FAC ¶ 29.) GOVIND mentioned that he was involved in a lawsuit that could lead to an unfavorable judgment against him, and his credit score compromised, he then proposed to have his son SUSHOVAN sign the lease agreement instead of him. GOVIND reassured OLI that this arrangement would be fine, as both he and OLI shared a strong mutual trust and were dedicated to being reliable business partners. (FAC ¶ 31.)

GOVIND then suggested that he and OLI adopt the business registered by SUSHMINA, which OLI agreed. (FAC ¶ 33.) GOVIND sent through SUSHMINA a raw agreement draft to OLI proposing SUSHMINA to be appointed as a general manager to represent his and MIRA's interests. (FAC ¶ 34.) Given SUSHMINA's history of unsuccessful management of previous partnership businesses, which led to litigation and conflicts among other partners, OLI expressly refused to involve SUSHMINA in any capacity, even as a representative or a general manager. (FAC ¶ 35.)

HAN and OLI obtained a loan and then tendered \$153,000 (one hundred and fifty-three thousand dollar) to the escrow as consideration for their share of partnership in the JUG SHOP. The escrow process to buy the JUG SHOP was completed on August 14, 2023. OLI has been continuously paying interest in the amount approximately \$3,000

(three thousand dollar) each month since then. (FAC ¶ 38.) Pursuant to OLI and GOVIND's agreement to manage the JUG SHOP by themselves, they requested SUSHOVAN and HAN to amend the Article of Information of the OM NAMAHA LLC as "Member managed" which SUSHOVAN and HAN did on July 21, 2024. (FAC ¶ 39.)

There was never an agreement between OLI, GOVIND, SUSHOVAN or HAN to appoint or hire a manager or to have the LLC to be managed by a manager. During the transfer process of ABC license for the JUG SHOP, HAN was told by SUSHMINA to sign in a boilerplate LLC agreement, however, terms of which were never discussed or agreed upon by OLI, GOVIND, SUSHOVAN or HAN. (FAC ¶ 40.)

SUSHMINA Business Interventions

On December 8, 2023, HAN sent an iPhone message to SUSHOVAN, SUSHMINA and OLI asking about if there was an account for the JUG SHOP in order to obtain K-1 form for her tax purposes. (FAC ¶ 47.) SUSHMINA responded, "We have a CPA for the store. What is your question that you are preparing? I will forward this info to him and get info back to you. He is in Nepal and he may not respond." (FAC ¶ 48.)

SUSHMINA again interfered with OLI's management decisions on February 2, 2024. OLI again friendly reminded SUSHMINA about her status in the JUG SHOP and told her not to interfere with OLI's JUG SHOP management. OLI told SUSHMINA that if she has any concern about the management, he and GOVIND should come to a resolution. (FAC ¶ 49.) On March 10, 2024, a meeting was held where OLI told the SHAHIS that if SUSHMINA was going to be involved in JUG SHOP management, he was going to pull out his partnership with GOVIND. (FAC ¶ 50.)

SUSHMINA Threats

On March 16, 2024, while randomly checking the JUG SHOP security camera to check activities in JUG SHOP with intent to fulfil his managerial duties and protect his ownership interest in JUG SHOP, OLI saw SUSHMINA grabbing a cigarette pack from the store showcase rack, putting the cigarette pack in her pocket without scanning it in the POS system. (FAC ¶ 53.) On March 28, 2024, OLI was talking with a JUG SHOP employee then logged into the JUG SHOP security camera to help the employee find an insurance document. (FAC ¶ 55.) SUSHMINA took it as an opportunity to retaliate against OLI accusing him that he was monitoring her on the camera and then she threatened HAN stating that she was filing a report for harassment against OLI. (FAC ¶ 56.) In another text on same day, on March 28, 2024, SUSHMINA threatened HAN about filing a restraining order and harassment charges against OLI with the Police. (FAC ¶ 57.) Later that same day, SUSHMINA threatened HAN via third threatening text message that she was on her way to Pleasant Hill police. (FAC ¶ 58.)

Plaintiffs Declare They Want Out of JUG SHOP

OLI called a meeting with SHAHIS and proposed either to pull out of the partnership with GOVIND for the JUG SHOP or sell the JUG SHOP. (FAC ¶ 59.) As SUSHMINA had stated that she was filing a restraining order and harassment charges against OLI, he did not want any problem with law enforcement and therefore he stopped going to the JUG SHOP after SUSHMINA's threats. (FAC ¶ 61.) As OLI had been actively involved in the management of JUG SHOP until around end of March 2024, he knew that the JUG SHOP was operating in profit until then. (FAC ¶ 63.) Since then, SHAHIS took exclusive control of the JUG SHOP inventory, all books and record of the OM NAMAHA LLC. (FAC ¶ 62.)

Transfer of OM NAMAHA LLC

On April 29, 2024, GOVIND and OLI had their respective representative SUSHOVAN and HAN sign an LLC MEMBERSHIP TRANSFER AGREEMENT (hereafter, "LLC MITA"). (FAC ¶ 65.) On May 3, 2024, SUSHOVAN fraudulently transferred OM NAMAHA LLC into his name alone and filed Statement of Information Limited Liability Company with the Secretary of the State of California, running afoul of the LLC MITA. (FAC ¶ 68.)

Paragraph 1(b) of the LLCC MITA provided "The Purchase Price shall be payable to Buyer to Seller, and the Transferred Membership Interest shall be transferred by Seller to Buyer, on July 15, 2024 (the "Closing"). (FAC ¶ 70.) Despite such provision, SHAHIS including SUSHOVAN did not provide the record, books and accounting or Balance Sheet and Profit and Loss Statement of the LLC until August 31, 2024, nor paid the consideration to HAN and OLI by the due date pursuant to LLC MITA. (FAC ¶ 71.)

On July 15, 2024, SHAHIS breached the LLC MITA by SUSHMINA, on behalf of GOVIND and SUSHOVAN, informing HAN via text message that they were not going to perform. (FAC ¶ 81.) On July 27, 2024, GOVIND notified OLI that he would not be involved in the JUG SHOP project, breaking his promises which OLI had detrimentally relied. (FAC ¶ 82.)

Balance Sheet and Profit and Loss Statements for JUG SHOP

The Balance Sheet and Profit and Loss Statement for the JUG SHOP that was presented to HAN and OLI contained several fabricated statements with respect to expenses of the JUG SHUP; unfounded allegations against OLI; self-dealing transactions on part of SUSHOVAN and his agent and sister SUSHMINA; including accountant's fees under the legal and professional services heading in the amount of \$14,000 to SANTOSH who admitted with HAN on August 9, 2024 that he was not an accountant for OM NAMAHA LLC, rather, he represented SUSHMINA as an individual. (FAC ¶ 91.) The Balance Sheet and Profit and Loss Statement for the JUG SHOP that

was presented to OLI and HAN by SUSHMINA on behalf of GOVIND and SUSHOVAN contained a self-dealing declaration by SUSHMINA herself as an agent of SUSHOVAN for the first time, without any authority, consent or agreement by the LLC members or the JUG SHOP partners which provided her salary as a self-declared general manager in the amount \$81,698. (FAC ¶ 92.) The Balance Sheet and Profit and Loss Statement for the JUG SHOP that was presented to OLI and HAN by SUSHMINA on behalf of GOVIND and SUSHOVAN contained information inflating SUSHMINA's work hours in the JUG SHOP and understating OLI's work hours. (FAC ¶ 93.)

End of Plaintiff Defendant Business Relations

On September 7, 2024, GOVIND invited OLI to meet to discuss possibly OLI purchasing SHAHI's share of interest in the JUG SHOP. (FAC ¶ 94.) On September 8, 2024, SUSHMINA sent an email to HAN and SUSHOVAN stating that SHAHIS are planning to sell the JUG SHOP. (FAC ¶ 95.) On September 9, 2024, OLI went to meet GOVIND in a good faith attempt to resolve the issues mutually despite multiple breaches of promises, fraudulent conversion of LLC and breach of the LLC MITA by the SHAHIS. However, GOVIND was not ready to fulfill his past promises and to pay OLI and HAN pursuant to LLC MITA. (FAC ¶ 96.)

On September 12, 2024, HAN discovered that her name from the joint account with Chase Bank Pleasant Hill for the JUG SHOP was removed by SHAHIS without her knowledge or consent. (FAC ¶ 97.) On the same day, SHAHIS sent a letter via email through their attorney to HAN and OLI, falsely claiming that OLI and HAN will be liable of fraud, misrepresentation, breach of oral contract, breach of the Company Agreement, breach of the duty of care, and breach of the duty of loyalty in the avoidable event and offering only \$20,000 to HAN and OLI in condition to waive all of the claims with respect to the JUG SHOP and the OM NAMAHA LLC with SHAHIS. (FAC ¶ 98.)

Plaintiffs are informed and believe, and based thereon allege that, at least from the beginning of July 2024, SHAHIS clearly knew that HAN was pregnant, but SHAHIS kept intentionally inflicting emotional distress to HAN and OLI. (FAC ¶ 99.) Plaintiffs are informed and believe and based thereon allege that SHAHIS are actively showing the JUG SHOP to buyers with intent to usurp HAN and OLI's interests. (FAC ¶ 100.)

Plaintiffs allege that as a proximate and direct result of the intentional infliction of emotional distress by SHAHIS to HAN and OLI, HAN went through complications in her pregnancy and had an urgent Cesarean surgery to deliver a premature baby. (FAC ¶ 101.) Plaintiffs allege that SHAHIS did not comply with any of the LLC formalities, they were involved in self-dealing and fraudulent conducts with respect to OM NMAHA LLC and therefore they are individually, jointly and severally labile for all causes of action

alleged herein. (FAC ¶ 102.)

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Uncertainty is a well-established ground of demurrer. (*Martin v. Bank of San Jose* (Cal. App. 1929) 98 Cal. App. 390.) The objection of uncertainty does not go to failure to allege sufficient facts but to doubt as to what the pleader means by the facts alleged. (*Brea v. McGlashan* (1934) 3 Cal. App. 2d 454.) A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made. (*Butler v. Sequeira* (1950) 100 Cal. App. 2d 143.) A Complaint is ambiguous and uncertain where it cannot be ascertained therefrom whether acts complained of were committed by defendants in their individual capacity, or in one of other capacities in which they are alleged to have acted. (*Lapique v. Ruef* (1916) 30 Cal. App. 391.)

Analysis

Seventh Cause of Action for Fraudulent Conversion (Against SUSHOVAN and SUSHMINA)

The Demurrer argues that the Seventh Cause of Action for Fraudulent Conversion fails to state sufficient facts. “Conversion is the wrongful exercise of dominion over the property of another.” (*Welco Electronics, Inc. v. Mora* (2014) 223 Cal. App. 4th 202, 208.) The elements of conversion are “(1) the plaintiff’s ownership or rights to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property rights; and (3) damages.” (*Id.*) “It is the uniform rule of law that shares of stock in a company are subject to an action in conversion.” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal. App. 4th 97, 122.) Further, when fraud is alleged, the heightened pleading requirements imposed by California Law should be applied. “In California, fraud must be pled specifically; general and

conclusory allegations do not suffice.” (*Lazar v. Superior Court* (1996) 12 Cal. 4th 631, 645.) “This particularity requirement necessitates pleading facts which show how, when, where to, to whom, and by what means the representations were tendered.” (Id.)

Ownership and Right to Possession

The FAC alleges that HAN was a member of OM NAMAHA LLC with a valid ownership interest entitling her to co-ownership, access to records, management participation, and profits, representing a \$153,000 investment. (FAC ¶¶ 175–176.) On April 29, 2024, HAN and Defendant SUSHOVAN SHAHI executed a written LLC Membership Interest Transfer Agreement (“LLC MITA”), under which HAN agreed to sell 100% of her membership interest to SUSHOVAN, with the purchase price to be determined after completion of a Balance Sheet and Profit and Loss Statement. (FAC ¶¶ 182–184.) The LLC MITA expressly prohibited SUSHOVAN from amending LLC records or exercising unilateral control before closing. (FAC ¶ 185.)

Wrongful Dominion and Deprivation of Property

Without paying any consideration and without providing the required Balance Sheet or Profit and Loss Statement, SUSHOVAN unilaterally removed HAN as a member by filing a Statement of Information listing himself as the sole member of OM NAMAHA LLC. (FAC ¶¶ 68, 186.) At the same time, SUSHOVAN and SUSHMINA removed HAN from the LLC’s Chase Bank operating account, cutting off her access to the company’s finances and records. (FAC ¶ 187.)

Fraudulent Conduct

Defendants argue that because the Seventh Cause of Action uses the word “fraudulent,” it must satisfy heightened pleading requirements and allegedly does not. This argument fails.

Plaintiff’s Seventh cause of action incorporates by reference all factual allegations alleged in paragraph 1 through 173. (¶ 174). The FAC pleads with specificity that Defendants delayed disclosure of financials, fabricated Balance Sheets and Profit and Loss Statements, inflated expenses, inserted unauthorized salary payments to SUSHMINA, and misrepresented the role of Defendant SANTOSH SAH to justify unilateral control and coercive valuation. (FAC ¶¶ 87, 91–93, 188–191.) These allegations identify who committed the misconduct, what was misrepresented, when the acts occurred, how the scheme operated, and why it was fraudulent—satisfying *Lazar v. Superior Court* (1996) 12 Cal.4th 631.

Damages

The FAC alleges substantial damages, including loss of HAN’s \$153,000 investment,

lost profits, loss of ownership and management rights, exposure to third-party creditor liability, and severe emotional distress resulting from Defendants' fraudulent and oppressive conduct (FAC ¶¶ 176, 193–195, 101). The FAC further alleges that Defendants SUSHOVAN and SUSHMINA SHAHI, without member approval or authorization, diverted LLC assets subject to division under the LLC MITA by allocating approximately \$81,698 to SUSHMINA as an unauthorized "manager salary" (FAC ¶ 92), and over \$14,000 in legal and accounting fees without disclosure or approval (FAC ¶ 93), while inflating expenses and fabricating financial records during their exclusive control of the LLC's assets, books, and accounting (FAC ¶ 91).

The Demurrer is overruled as to the Seventh Cause of Action.

Ninth Cause of Action for Breach of Fiduciary Duties (Against SUSHMINA)

Defendants argue that in no way can this principal-agent theory be construed to create a fiduciary obligation stemming from an agent to a third party. Defendants also argue that there are no facts to indicate that SUSHMINA owed a fiduciary duty to Plaintiffs, and because the legal theory presented is uncertain and/or unintelligible, this cause of action is appropriate subject to demurrer. (Motion at p. 10: 13-16.)

Plaintiffs rebut this premise with case law. Under *City of Hope National Medical Center v. Genentech, Inc.* (2008) 43 Cal.4th 375, 386, a fiduciary relationship exists where a defendant knowingly undertakes to act on behalf and for the benefit of another—without any requirement of formal designation as an officer, member, or manager. Similarly, *Duffy v. Cavalier* (1989) 215 Cal.App.3d 1517, 1534 holds that one who voluntarily assumes a relationship of confidence and thereby exercises control over another's affairs owes fiduciary duties as to those interests. Additionally, an agent who acts for her own advantage forfeits any immunity otherwise afforded and may be held liable for participating in or inducing breaches of fiduciary duty. (*Everest Investors 8 v. Whitehall Real Estate Ltd. Partnership XI* (2002) 100 Cal.App.4th 1102.) Under these authorities, Defendants' focus on SUSHMINA SHAHI's lack of formal LLC membership is ineffective.

The FAC pleads facts establishing that SUSHMINA SHAHI knowingly assumed fiduciary responsibilities toward Plaintiffs. It alleges that SUSHMINA acted as an agent for SUSHOVAN SHAHI and GOVIND SHAHI in the operation, management, and financial affairs of JUG SHOP and OM NAMAHA LLC (FAC ¶ 205); held herself out as possessing superior knowledge of liquor-store operations and accounting while directing business operations and controlling financial documentation (FAC ¶¶ 206–208); represented SUSHOVAN in business dealings, communicated with third parties on his behalf, and drafted correspondence from his email account, demonstrating agency and control (FAC ¶ 208); and induced Plaintiff HAN's reasonable reliance on her assumed role,

experience, and representations in managing the business and preparing documents (FAC ¶ 208).

The Demurrer is overruled as to the Ninth Cause of Action.

Twelfth Cause of Action for Aiding and Abetting a breach of Fiduciary Duty (Against SANTOSH)

“A defendant is liable for aiding and abetting another in the commission of an intentional tort, including a breach of fiduciary duty, if the defendant ‘knows the other’s conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act.’” (*Casey v. U.S. Bank Nat. Assn.* (2005) 127 Cal. App. 4th 1138, 1143.) “The elements ... are: (1) a third party’s breach of fiduciary duties owed to plaintiff; (2) Defendant’s actual knowledge of that breach of fiduciary duties; (3) substantial assistance or encouragement by defendant to the third party’s breach; and (4) defendant’s conduct was a substantial factor in causing harm to Plaintiff.” (*American Master Lease LLC v. Idanta Partners, Ltd.* (2014) 225 Cal. App. 4th 1451, 1478.)

Fiduciary Duty Owed to Ms. HAN from GOVIND SHAHI

Defendants posit that nowhere in the FAC is there any basis (legally or factual) that imposes a fiduciary obligation being owed by GOVIND SHAHI to Sabrina HAN and cite to FAC ¶ 230. However, in just the previous paragraph the FAC alleges, at all relevant times, GOVIND K. SHAHI owed fiduciary duties to OLI as his partner and co-venturer in the JUG SHOP; SUSHOVAN SHAHI owed fiduciary duties to HAN as her co member of the member-managed OM NAMAHA LLC; and SUSHMINA SHAHI assumed fiduciary duties to HAN and OLI by inserting herself into management (and, as a learner under OLI, adopting duties of loyalty, candor, and fair dealing, as well as those GOVIND owed to OLI when she asserted a managerial role). (FAC ¶ 229.)

Fiduciary Duty owed by SUSHMINA SHAHI to Ms. HAN or Mr. OLI

Plaintiffs established the fiduciary duty owed by SUSHMINA SHAHI to Ms. HAN or Mr. OLI through current case law as described in the Ninth Cause of Action section above.

No Substantial Factor Because THALBIR OLI is not an Alleged Owner of OM NAMAHA LLC

Defendants contend that there are no allegations in the FAC that Mr. OLI had any ownership interest in OM NAMAHA LLC. The FAC alleges that JUG SHOP was initially bought by GOVIND and OLI following general partnership oral agreement between them and then it was later adopted by OM NAMAHA LLC in GOVIND’s instruction for convenience. (FAC ¶¶ 13, 39.)

The FAC pleads that SANTOSH had actual knowledge of the fiduciary relationships, Plaintiffs' ownership interests, and the LLC Membership Interest Transfer Agreement; knew the financials would be used to price HAN's buyout and affect OLI's rights; knew there was no authority for SUSHMINA SHAHI's salary or the reported losses; and nevertheless, delayed disclosures, falsely disavowed his role, and authored or approved manipulated financial statements to facilitate those breaches. (FAC ¶¶ 231–237.) These well pleaded facts squarely satisfy California's standard for aiding-and-abetting liability and defeats demurrer.

No Substantial Factor Because Sabrina HAN was not bound to Ms. SAH's Services

Defendants contend that the FAC can be interpreted to show an "attempted" aiding and abetting of a breach of fiduciary duty, but without any allegations showing how Ms. HAN was damaged.

The FAC alleges that SANTOSH's coordinated delay and false disavowal enabled the SHAHI defendants to manipulate records, exclude Plaintiffs from accounts, conceal self-dealing, and depress valuation, while his August 31 financials supplied the mechanism used to justify exclusion and coerce a lowball buyout. (FAC ¶¶ 232–237.) Plaintiffs' refusal to accept that coerced buyout does not defeat causation; the FAC pleads ongoing damages including loss of access to records and accounts, devaluation of ownership interests, exposure to creditor claims, lost profits, professional fees, and emotional distress. (FAC ¶ 238.)

The Demurrer is overruled as to the Twelfth Cause of Action.

Thirteenth Cause of Action for Intentional Misrepresentation (Against SANTOSH)

Defendants argue that the Thirteenth Cause of Action for Intentional Misrepresentation fails to state sufficient facts. The elements of intentional misrepresentation "are (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) actual and justifiable reliance, and (5) resulting damage." (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1245; citing *Chapman v. Skype Inc.* (2013) 220 Cal.App.4th 217, 230–231.)

Particularity, Misrepresentation, Knowledge of Falsity

Defendants argue that FAC ¶ 241 cannot constitute a misrepresentation because SANTOSH SAH "candidly" told Plaintiff HAN that he was not the accountant for OM NAMAHA LLC and instead represented SUSHMINA individually.

This argument fails because the FAC alleges that this statement was false when made and intended to mislead. Specifically, the FAC alleges that on August 9, 2024, SAH affirmatively told HAN that he was not the accountant for OM NAMAHA LLC and that

he represented only SUSHMINA in her individual capacity. (FAC ¶ 241.) However, the FAC further alleges that this statement was untrue: on August 31, 2024, SUSHMINA transmitted financial documents to HAN and OLI whose spreadsheet metadata clearly identified SAH as the author and preparer of the LLC's financials. (FAC ¶ 244.) The FAC also alleges that SAH prepared and/or approved the Balance Sheet, Profit and Loss Statement, inventory, and related spreadsheets that were used to set HAN's buyout price under the LLC MITA. (FAC ¶¶ 234–235.) At the pleading stage, these allegations sufficiently allege that SAH's August 9 representation was knowingly false, misleading, and material.

Scienter, Actual, and Justifiable Reliance

Defendants argue Mr. SAH was truthful to Ms. HAN in telling her he was not an accountant for OM NAMAHA LLC, Ms. HAN relied on this not to take any further action to enforce her contractual and statutory inspection rights.

This argument ignores the misrepresentation that was alleged earlier in the FAC. (See FAC ¶¶ 241-47.)

The FAC further alleges that at the time SAH told HAN he was not the LLC's accountant, he intended to delay production of the financial records and to enable the SHAHIS to continue pressuring Plaintiffs into accepting a below-market buyout. (FAC ¶ 242.) It further alleges that SAH intended HAN to rely on that representation so that she would refrain from insisting on immediate disclosure and formal enforcement of her inspection rights. (FAC ¶ 243.) The FAC also alleges that when SAH later prepared and transmitted the August 31 financials, he knew the statements were false or recklessly disregarded their falsity and intended HAN to rely on them to accept a diminished valuation and acquiesce in ownership and governance changes favorable to the SHAHI family. (FAC ¶¶ 245–247.)

The FAC additionally alleges that, in reliance on SAH's representation that he was not the LLC's accountant, HAN refrained from demanding immediate production of the LLC's financial records from him or pursuing other formal remedies to enforce her inspection and contractual rights. (FAC ¶ 248.) This forbearance allowed the SHAHIS additional time to manipulate records, exclude HAN from accounts, and prepare distorted financials. (FAC ¶¶ 242, 248–249.)

Damages

The FAC pleads that SAH's misrepresentation and intentional delay were a substantial factor in enabling the SHAHIS to manipulate financial records, fraudulently convert LLC assets and inventory, and deprive HAN of the value of her \$153,000 investment. (FAC ¶ 249.) It further alleges that HAN suffered lost profits, loss of ownership rights, out-

of-pocket legal expenses, exposure to creditor claims, and severe emotional distress, including health complications and premature birth. (FAC ¶ 249.)

The Demurrer is overruled as to the Thirteenth Cause of Action.

Fourteenth Cause of Action for Negligent Misrepresentation (Against SANTOSH)

Defendants argue that the Fourteenth Cause of Action for Intentional Misrepresentation fails to state sufficient facts. “The elements of negligent misrepresentation are (1) a misrepresentation of a past or existing material fact, (2) made without reasonable grounds for believing it to be true, (3) made with the intent to induce another’s reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.” (*Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 196.)

Misrepresentation

Defendants contend that from FAC ¶¶ 254 – 255, the alleged misrepresentation proffered by Plaintiff HAN is that Mr. SAH promise to complete OM NAMAHA LLC financials by a certain time date or within a certain time is a representation of future events. The Court is not persuaded. The allegations for this cause of action complains of the same misrepresentation in the thirteenth cause of action for intentional misrepresentation and Plaintiffs are in their right to plead in the alternative. (See *Mendoza v. Rast Produce Co., Inc.* (2006) 140 CA 4th 1395, 1402 [When a plaintiff is in doubt about what can be established by the evidence, he or she may plead in the alternative, asserting alternative theories of recovery.])

Justifiable Reliance

Please see the above Scienter, Actual, and Justifiable Reliance section as that analysis also pertains to this cause of action.

The Demurrer to the Fourteenth Cause of Action is overruled.

Fifteenth Cause of Action for Conspiracy to Defraud, Breach of Fiduciary Duties (Against all Defendants)

A conspiracy claim is not defeated unless and until the underlying torts are adjudicated legally insufficient. (*Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 511.)

Plaintiffs’ cause of action for conspiracy is not defeated because Plaintiffs will have causes of action that survive this Demurrer. Even if this Demurrer were to be granted in full, this Demurrer did not challenge all the causes of action that this conspiracy cause of action depends on (*e.g.*, the Eleventh Cause of Action for Intentional Infliction of Emotional Distress), thus the conspiracy cause of action must survive.

The Demurrer to the Fifteenth Cause of Action is overruled.

Conclusion

The **Demurrer is overruled in its entirety.**

Defendants must file their Answer within 15 days of service of notice of entry of this order.

7. 9:00 AM CASE NUMBER: C24-03509
CASE NAME: AJ JACKSON VS. ANTIOCH UNIFIED SCHOOL DISTRICT
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: ANTIOCH UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Defendant Antioch Unified School District's Demurrer to Plaintiff AJ Jackson's First Amended Complaint ("FAC") is **sustained without leave to amend**. Defendant shall prepare and submit a proposed order and file and serve notice of entry of order.

Background

Plaintiff AJ Jackson, a minor, by and through his Guardian Ad Litem Chablis McDuffie, alleges that on January 1, 2024, while attending Carmen Dragon Elementary, he was physically assaulted by other students while under the custody, control, and care of District employees. (FAC ¶¶ 12-13.) Plaintiff alleges that District staff "failed [to] take appropriate action" to protect him. (*Id.* ¶ 13.) Plaintiff seeks to hold the District vicariously liable for the negligence of its employees under Government Code section 815.2, and further alleges the District owed him a mandatory duty of supervision under Education Code section 44807 and California Code of Regulations, title 5, section 552. (*Id.* ¶¶ 14-19.)

Plaintiff alleges that a government claim was served on the District pursuant to Government Code section 911.2 and has not been rejected. (*Id.* ¶¶ 8-9.) Plaintiff further alleges the claim was mailed on or about June 26, 2024, via USPS certified mail, to the District's principal office at 510 G Street, Antioch, California, and was delivered on June 28, 2024. (*Id.* ¶¶ 9(a)-(b); Exhs. A-C.) The claim, as attached to the FAC, was addressed to "Antioch Unified School District, Attn: Risk Management." (*Id.*, Ex. A.)

On August 13, 2025, Defendant demurred to the original complaint on the ground that Plaintiff failed to comply with the claim presentation requirements of the Government Claims Act (GCA), because the claim was addressed and delivered to the District's Risk Management Department rather than to the clerk, secretary, auditor, or governing body as required by Government Code section 915. On December 12, 2025, the Court sustained Defendant's demurrer with leave to amend, finding that Plaintiff should be given the chance to plead "additional facts regarding precise address, actual receipt and routing" of the claim, or facts otherwise demonstrating or excusing compliance with the GCA's claim-presentation requirements.

On January 14, 2026, Plaintiff filed a FAC which realleges the same claim-presentation facts as the original complaint and attaches the claim form itself, the certified-mail receipt, USPS delivery confirmation, and a printout of the District's website contact information. (FAC, ¶¶ 9(a)-(c); Exhs. A-D.) Defendant now demurs to the FAC on the same ground raised in the prior demurrer, arguing that these newly attached exhibits confirm rather than cure the defect, because they establish the claim was addressed and delivered only to the District's Risk Management Department.

Demurrer Standard

The role of a general demurrer is to test the legal sufficiency of a complaint. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) On demurrer, the court must liberally construe the complaint in the plaintiff or cross-complainant's favor. (Code Civ. Proc., § 452.) "A demurrer admit[s] all ... properly pleaded material facts." (*Nolte v. Cedars-Sinai Medical Center* (2015) 236 Cal.App.4th 1401, 1406.) However, the court does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.)

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) For the Court to grant leave to amend after sustaining a demurrer, however, the plaintiff must "show a reasonable possibility of curing the defect in the complaint by amendment." (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 994.) The plaintiff bears "the burden of proving that an amendment would cure the defect." (*Ibid.*) When the court has already sustained a demurrer to a similar cause of action with leave to amend, and plaintiffs do not remedy the facial deficiencies, this

Court may “infer that the pleader has no additional allegations with which to make its claim certain and has already pleaded its case to best advantage” and conclude that permitting a further opportunity for amendment would be futile. (Cf. *Hills Transp. Co. v. Southwest Forest Industries, Inc.* (1968) 266 Cal.App.2d 702, 713-714.)

Judicial Notice

The District requests judicial notice of two matters: (1) Exhibit A, the June 26, 2024 government claim form and accompanying materials, together with the assertion that Plaintiff has never presented a claim to the District's clerk, secretary, auditor, or governing body (“Fact No. 1”), and (2) Exhibit B, this Court's December 12, 2025 order sustaining the demurrer to the original Complaint. Plaintiff opposes judicial notice of Exhibit A and Fact No. 1 only, arguing that while judicial notice may extend to the existence and content of the claim form, it does not extend to the District's characterization of what the document establishes, and that Fact No.1 is a disputed fact that is improper for judicial notice.

Defendant's request for judicial notice of Exhibit B is granted. (Evid. Code, § 452, subd. (d).)

As to Exhibit A, the Court reaches the same result it reached on the prior demurrer. A court may take judicial notice of the existence and content of a public record, but not of the truth of factual matters asserted within it, particularly where that truth is disputed. A public entity may properly ask the Court to notice that its own records do not reflect compliance with the claims-presentation statute. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376.) However, that is different from asking the Court to notice, as an adjudicated fact, that no statutorily-designated recipient ever received the claim. The Court granted judicial notice of Exhibit A's existence and content in the prior order and does so again, but again declines to notice the truth of Fact No. 1 to the extent it asks the Court to resolve the contested question of whether Plaintiff's claim was ever received by a statutory recipient.

Fact No. 1 derives from the declaration of Eileen Alterman. Nothing on the face of Exhibit A itself shows that the claim was never forwarded to or received by the clerk, secretary, auditor, or board. The claim form and mailing materials show only that the claim was addressed to "Attn: Risk Management" and delivered to an individual at the District's address on June 28, 2024 and stamped received by the District's Business

Services Department on July 1, 2024. What became of the claim after that delivery is not established by the document itself but by Alterman's account of the District's claims-handling process. That account may be true, but it is a declaration describing disputed events, not a source whose accuracy cannot reasonably be questioned, and its truth is not a matter for judicial notice.

Discussion

Plaintiff alleges that he suffered injuries due to the negligence of Defendant Antioch Unified School District employees or agents in failing to supervise students. There is no dispute that the school district is a public entity.

With certain exceptions not applicable here, “no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented . . . until a written claim therefor has been presented to the public entity.” (Govt. Code §§ 905, 911.2, 945.4.)

Govt. Code section 915 provides:

(a) **A claim**, any amendment thereto, or an application to the public entity for leave to present a late claim **shall be presented to a local public entity by any of the following means:**

(1) Delivering it to the clerk, secretary or auditor thereof.

(2) **Mailing it to the clerk, secretary, auditor, or to the governing body at its principal office.**

(3) If expressly authorized by an ordinance or resolution of the public entity, submitting it electronically to the public entity in the manner specified in the ordinance or resolution. . . .

(e) **a claim**, amendment, or application **shall be deemed to have been presented in compliance with this section** even though it is not delivered or mailed as provided in this section **if, within the time prescribed for presentation thereof, any of the following apply:**

(1) **It is actually received by the clerk, secretary, auditor, or board of the local public entity.**

....

(Govt. Code, § 915, emphasis added.)

A complaint against a public entity must allege compliance with the GCA or circumstances excusing compliance. (*State v. Superior Court (Bodde)* (2004) 32 Cal.4th 1234, 1245.)

Plaintiff alleges he mailed a completed “Claim for Damage or Injury” form to Defendant, addressed to “Antioch Unified School District, Attn: Risk Management,” at the District's principal office at 510 G Street in Antioch, California. (FAC ¶ 9(a); Exhs. A-B.) The claim was sent by USPS certified mail and was delivered on June 28, 2024. (FAC ¶ 9(b); Exh. C.) The record does not indicate the claim was ever mailed or delivered by Plaintiff to Defendant's clerk, secretary, or auditor. (FAC ¶¶ 9(a)-(c).) The record does not indicate the claim was ever actually received by the clerk, secretary, auditor, or governing board of Defendant within the time period prescribed by law for presenting a claim. (*Id.*) Defendant argues this record is sufficient to show that, as a matter of law, Plaintiff did not comply with Government Code section 915 in presenting his claim to the District.

Defendant argues in its demurrer that Plaintiff did not comply with the requirements of the Government Code for claim presentation and that its demurrer should be sustained without leave to amend.

The facts of this case are similar to those presented in *DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983. In that case, the plaintiff was injured at a medical center operated by the County of Santa Clara, a public entity. (*Id.* at 987.) Plaintiff's counsel prepared letters regarding plaintiff's claim, addressed to the hospital's risk management department and the treating physicians, and personally delivered them to an employee of the medical staffing office in the hospital's administration building. (*Id.*) The letters, though, were never mailed, personally served on, or delivered to the county clerk, or the clerk of the board, or any other statutorily designated acceptable recipients denoted in Government Code section 915. (*Id.*) A letter was received, though, by the County's risk management department, and a member of the County's risk management team had a detailed telephone conversation with plaintiff's counsel regarding the plaintiff's claim. (*Id.* at 988.) During the phone call, the risk management department acknowledged receipt of counsel's letter, discussed certain procedural

and substantive aspects of the plaintiffs claim, and provided the County's attorney's contact information to plaintiff's counsel. (*Id.*) The risk management team member did not, "mention that the letter failed to satisfy section 915's delivery requirements." (*Id.*) Further, the "[p]laintiff never received written notice that her claim was untimely or presented to the wrong party." (*Id.*)

Here, as in *DiCampli-Mintz*, Plaintiff's claim was addressed and delivered to Defendant's risk management department rather than to any statutorily-designated recipient under section 915, and the record reflects only that the claim was received by an unidentified individual at the District's mailing address. (FAC, ¶ 9b; Ex. C.) Thus, as in *DiCampli-Mintz*, Plaintiff did not fulfill the claim presentation requirements of section 915.

Plaintiff's opposition characterizes the claim as having been "received and date-stamped by District personnel," and argues this supports "at minimum . . . an inference of actual receipt." But the FAC does not allege that the claim was received by anyone other than Risk Management. It is receipt by a statutorily-designated recipient that is required, and neither the FAC's allegations nor its exhibits support an inference that this occurred.

On demurrer, a public entity may properly point to its own records, including a claim form presented by the plaintiff, and argue that those records do not reflect compliance with the GCA's claim presentation requirements. (*Gong, supra*, 226 Cal.App.4th at 376.) That is not a request that the Court resolve a disputed fact by judicial notice, but a challenge the plaintiff must respond to, either by alleging facts showing the claim was in fact properly presented or received, or by alleging some other basis for compliance or excuse. Plaintiff stated in his opposition that he could, if given leave, "plead additional facts regarding precise address, actual receipt and routing." (Opp. to First Demurrer, 11:12-13.) The Court gave Plaintiff leave to amend to allege such facts. Having told the Court he could plead those facts, Plaintiff cannot now argue that he should not be required to do so.

Plaintiff additionally argues, as did the plaintiff in *DiCampli-Mintz* in the trial court, that Defendant waived the requirements of Government Code section 915 because it failed to give notice of any deficiency under Government Code section 910.8. (MPA, pp. 2-3.) Plaintiff is making a "substantial compliance" argument in substance, which

was rejected in *DiCampli-Mintz*.

Plaintiff's waiver argument relies on statutes that presuppose a statutorily-designated recipient has already received the claim. (See Gov't Code § 910.8; *DiCampli-Mintz, supra*, 55 Cal.4th at 988, fn. 5.) As discussed above, there is no allegation, nor any judicially noticeable fact, that a statutorily-designated person received Plaintiff's claim. Nor does Plaintiff allege that the District did anything to induce the misdirection of his claim. Plaintiff's first opposition characterized the District's position as a "preference" that claims be sent to Risk Management, but he did not allege then, and does not allege now, that the District ever directed him to address the claim that way or said that doing so was sufficient.

Plaintiff contends that *DiCampli-Mintz* is distinguishable because the claim in that case was sent to a "remote sub-department," whereas his claim was delivered to the District's main office where the Board sits. The distinction fails. The letter in *DiCampli-Mintz* was received not only by the hospital's risk management office but also by the Santa Clara County Risk Management Department, a department within the County that "deals with legal claims against the County." (*DiCampli-Mintz, supra*, 55 Cal.4th at 988, fn. 4.) The California Supreme Court held that "any differences are irrelevant because plaintiff failed to properly present her letter to a statutorily designated person, nor did any such designee actually receive the letter." (*Ibid.*) To the extent Plaintiff argues that delivery to the address where the Board sits supports an inference that the Board actually received the claim, the Court disagrees. The claim was addressed "Attn: Risk Management." (FAC, Exhs. A-B.) An inference that the claim nonetheless made its way to the Board depends on the assumption that District personnel receiving a misdirected claim would route the claim to a statutory recipient. *DiCampli-Mintz* rejected that reasoning, holding that such an approach "inappropriately shifts responsibility for filing a claim with the proper official or body from the claimant to the public entity." (*DiCampli-Mintz, supra*, 55 Cal.4th at 996-997.)

Leave to Amend

The burden is on plaintiff to show in what manner plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (*Moore v. Centrelake Medical Group, Inc.* (2022) 83 Cal.App.5th 515, 537.)

The opposition recites the general standard governing leave to amend, but does not

identify additional facts that Plaintiff proposes to allege in a second amended complaint beyond "further facts demonstrating substantial compliance, actual receipt, and the District's waiver of any defect in the claim's presentation." (See Opp. p. 3:14-16.) These are the legal conclusions Plaintiff hopes to establish, but Plaintiff does not say what the facts would be. Plaintiff has therefore not carried his burden of showing a reasonable possibility that the defect can be cured.

Because Plaintiff has already had one opportunity to amend, the Court infers that he has pleaded this theory to best advantage and finds that further leave to amend would be futile.

Disposition

For the foregoing reasons, the demurrer is **sustained without leave to amend**.

If Plaintiff contests this tentative ruling and requests further leave to amend, he should be prepared to identify at the hearing the specific facts he would allege to state a viable cause of action against the District as a public entity.

8. 9:00 AM CASE NUMBER: C25-00983
CASE NAME: DARCELL KELLY VS. EDDIE DRUMMER
*HEARING ON MOTION IN RE: INTERLOCUTORY JUDGMENT OF PARTITION BY SALE
FILED BY: KELLY, DARCELL
TENTATIVE RULING:

The court on its own motion **continues** the hearing on this matter to **August 7, 2026**, at 9:00 a.m., in Department 32. Plaintiff Darcell Kelly AKA Darcell Purefoy shall file the separate statement in support of the motion for summary judgment regarding an interlocutory judgment of partition by sale, by July 29, 2026.

9. 9:00 AM CASE NUMBER: C25-03386
CASE NAME: CECILY TAYLOR VS. STEVE SMITH
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT AS TO STEVE SMITH
FILED BY: SMITH, STEVE
TENTATIVE RULING:

The unopposed motion of Defendant Steve Smith to set aside default pursuant to CCP Section 473(b) is **granted**. Defendant must file and serve his Answer or other responsive pleading within 15 days of this ruling, i.e., within 15 days of July 17, 2027.

10. 9:00 AM CASE NUMBER: C25-03696
CASE NAME: LORI LOVELAND VS. HOME DEPOT U.S.A, INC.
*HEARING ON MOTION IN RE: TO STAY
FILED BY: HOME DEPOT U.S.A, INC.
TENTATIVE RULING:

A Stipulation and Order was filed with the Court. The Court continues the Case Management Conference to: December 09 2026 at 8:30 a.m.

The Court continues the Motion to Stay to: October 09 2026 at 9:00 a.m.

11. 9:00 AM CASE NUMBER: MSC19-01240
CASE NAME: SONNENSHEIN VS PACIFIC UNION
HEARING ON SUMMARY MOTION
FILED BY: SONNENSHEIN, STACEY
TENTATIVE RULING:

Continued to 9:00 a.m. on October 23, 2026, pursuant to the parties' stipulation and order filed July 15, 2026.

12. 9:00 AM CASE NUMBER: MSC21-02399
CASE NAME: SYED VS. LEITAO
HEARING ON SUMMARY MOTION
FILED BY: SYED, A.
TENTATIVE RULING:

Plaintiffs A. Syed and I. Syed's motion for summary adjudication as to Causes of Action One and Three is **denied**.

Plaintiffs seek summary adjudication on the first cause of action for breach of fiduciary duty and the third cause of action for fraud (concealment).

A plaintiff may move for summary judgment if plaintiff contends there is "no defense to the action", that the papers show "there is no triable issue of material fact and that the moving party is entitled to judgment as a matter of law". (§ 437c(a)(1) and (c).) A plaintiff meets his burden on summary judgment if plaintiff " 'has proved each element of the cause of action entitling' him 'to judgment on that cause of action.' " (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.) A motion for summary adjudication under § 437c(f)(1) can be granted only "if it completely

disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (See also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.)

Breach of Fiduciary Duty

“ ‘ “The elements of a cause of action for breach of fiduciary duty are: (1) existence of a fiduciary duty; (2) breach of the fiduciary duty; and (3) damage proximately caused by the breach.” ’ [Citation.]” (*Tribeca Companies, LLC v. First American Title Ins. Co.* (2015) 239 Cal.App.4th 1088, 1114 (emphasis added).)

Relevant Allegations

Plaintiffs allege that they entered into a contract with Defendant as real estate agents and/or real estate brokers, which gave rise to a contractual relationship with Plaintiffs, and consequently, a fiduciary duty, and/or quasi-fiduciary duty owed by said defendants to Plaintiffs, and an accompanying duty of loyalty and duty to disclose all material facts. (FAC ¶4.) Later, Plaintiffs allege that Defendant violated his fiduciary duties and/or concealed facts regarding the parties’ contract and related documents, including the deed of trust and grant deed. (FAC ¶¶14-15.) Plaintiffs also allege that Defendant had superior knowledge of real estate transactions and that Plaintiffs relied on Defendant’s statements regarding the property and the plan to sell it. (FAC ¶16.)

In the breach of fiduciary duty claim, Plaintiffs allege that Defendant owed them a duty of loyalty and that Defendant’s insistence on taking an ownership interest in the property while simultaneously acting as a real estate agent/broker was a product of fraud, a conflict of interest, a breach of fiduciary duty and void or voidable. (FAC ¶23.) Plaintiffs also allege that Defendant represented that the agreement between them was legal, Defendant could handle things and that Defendant could sell the property out from under the Plaintiffs. (FAC ¶24.)

Plaintiff alleges that Defendant breached his fiduciary duties by recording a deed of trust on the property, based upon the parties’ void or voidable agreement, and threatening to record a grant deed on the property. (FAC ¶26.)

Duty and Breach

““The law imposes on a real estate agent ‘the same obligation of undivided service and loyalty that it imposes on a trustee in favor of his beneficiary.’ [Citations.] This relationship not only imposes upon him the duty of acting in the highest good faith toward his principal but precludes the agent from obtaining any advantage over the principal in any transaction had by virtue of his agency. [Citations.] A real estate licensee is ‘charged with the duty of fullest disclosure of all material facts concerning the transaction that might affect the principal’s decision. [Citations.]’ [Citations.]”” (George Ball Pacific, Inc. v. Coldwell Banker & Co. (1981) 117 Cal.App.3d 248, 256; see also, Horiike v. Coldwell Banker Residential Brokerage Co. (2016) 1 Cal.5th 1024, 1040 [real estate brokers’ duty of disclosure]; Civil Code section 2079.)

“ ‘ “Before a person can be charged with a fiduciary obligation, he must either knowingly undertake to act on behalf and for the benefit of another, or must enter into a relationship which imposes that undertaking as a matter of law.” [Citation.]’ [Citation.]” (Cleveland v. Johnson (2012) 209 Cal.App.4th 1315, 1338.)

Plaintiff argues that Defendant as a real estate broker owed fiduciary duties and an undivided duty of loyalty to their clients, including Plaintiffs. Plaintiffs argue that Defendant simultaneously acted as a real estate agent and an investor and insisted on receiving a deed of trust, in exchange for doing his job as a real estate agent. Thus, Defendant created a conflict of interest as he sought to profit at Plaintiffs’ expense.

Plaintiffs’ evidence is that Defendant listed the property for sale at the same time he asked Plaintiffs to sign the Equity Share Agreement and provide Defendant with a deed to the property. (I Syed dec. ¶¶10-12; A Syed dec. ¶¶10-12.) Defendant’s evidence shows, however, that the parties agreed to the Equity Share Agreement in January 2019. (Leitao dec. ¶¶7-13; Syed dec. ex 1.) Defendant also claims that the parties agreed to the deed of trust and the grant deed before the property was listed for sale. The deed of trust listing Defendant as the beneficiary is notarized on January 31, 2019 and a grant deed giving Defendant an interest in the property is notarized on February 1, 2019. (Syed dec ex. 2.) In March 2019, Defendant listed the property for sale as the listing broker. (Leitao dec. ¶18.)

Thus, Defendant’s facts show that he was not the Plaintiffs’ fiduciary when the

parties entered into the Equity Share Agreement and when Plaintiffs signed the deed of trust and grant deed. The Court finds that there is a triable issue of material fact as to when Defendant became the parties' real estate broker and thus, when the fiduciary duties started. Therefore, there is a triable issue as to whether Defendant was Plaintiffs' fiduciary when the parties entered into their agreement.

The Court finds, however, that Plaintiffs have met their burden of showing that Defendant had fiduciary duties to Plaintiff when he acted as a real estate broker in listing and selling the property. Defendant has not presented a triable issue of material fact as to these duties.

In reply, Plaintiffs argue Defendant advised Plaintiffs to reject a \$1.1 million offer to buy the house. This theory is not included in the complaint, not raised in the moving papers and is not based upon evidence submitted with the moving papers. For these reasons, the Court cannot consider this argument. Further, were the Court to consider this argument, Defendant states that he received an offer for \$1.2 million and it was Plaintiffs who decided to wait and see if they could get more offers. (Leitao dec 19.)

To the extent Plaintiffs are also claiming nondisclosure based upon Defendant not disclosing that the floor plan was an impediment to selling the house, Plaintiffs have not met their initial burden. Plaintiffs declare that Defendant never told them that the house's unusual floor plan would prevent its sale. (A. Syed dec. 15-16; I. Syed dec. 15-16.) Defendant testified at his deposition that from March to October 2019, he believed the house was sellable. (Plaintiffs' evid. Tab 6: Leitao depo: 41:20-22; 72:25-73:4.) In Defendant's opposition to the first motion for summary adjudication, he declared that as time went on potential buyer feedback was that the unusual floor plan and the Fung Shui were impediments to selling. (Plaintiffs' evid. Tab 9: Leitao dec. 19.)

Plaintiffs' evidence does not show that the property was not sellable. Nor does Plaintiffs evidence show that Defendant thought the floor plan would be an impediment to sell the house when it was listed. It was only after they received potential buyer feedback that it appeared the floor plan of the house might cause an

impediment to sale.

Damages

When damages are an element of the cause of action, the moving plaintiff must establish “both the fact and the amount of damages.” (*Pajaro Valley Water Management Agency v. McGrath* (2005) 128 Cal.App.4th 1093, 1106.) “[A] plaintiff cannot obtain judgment on a breach of contract cause of action in an amount of damages to be determined later.” (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241.)

Here Plaintiffs claim the following damages: Plaintiffs paid about \$85,000 in rent when they vacated the property for repairs; Plaintiffs claim they paid over \$11,000 in mortgage payments not covered by a temporary renter; when Defendant recorded a grant deed on the property it triggered a property tax reassessment, which has cost \$23,000 or more in additional taxes; and Plaintiffs claim approximately \$1.5 million in lost earnings because Imran had to switch from an independent contractor position, making \$480,000 per year, to a w-2 job, making \$180,000 per year, in order to obtain a loan to pay back Defendant.

As to Plaintiffs’ claim that Imran had to switch jobs and become a w-2 employee, which means he lost out on \$300,000 per year in additional income. Plaintiffs provide no evidence showing that Imran consistently made \$480,000 year after year, or would continue to make that much in the future. Further, it is not clear to the Court that an individual making \$480,000 per year could not get a loan without switching jobs, which raises questions regarding causation. Finally, there is a triable issue as to whether Imran voluntarily chose to switch jobs or if his position was converted to a full time employee as is suggested by the text message sent on December 17, 2019. (Defendant’s evidence page 27.)

Further, Plaintiffs claim damages in approximate amounts, as opposed to specifics. If the Court were to grant summary adjudication here, it would need to enter a specific number for the damages. In reply, Plaintiffs acknowledge that there is a triable issue as to the amount and causation of damages. (reply p.14.) Although the Court has conducted its own analysis on damages, it concurs with Plaintiffs’ statement

that there are triable issues as to the amount of damages, as well as causation.

The Court finds that Plaintiffs have not met their burden and/or there are triable issues as to both duty, breach and damages. Therefore, summary adjudication as to the breach of fiduciary duty claim is denied.

Fraud / Concealment

“ ‘ “[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” ’ [Citation.]” (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248 (emphasis added).)

“[N]ondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]” (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336.)

Here, Plaintiffs argue that Defendant was a real estate broker and thus a fiduciary, and he failed to disclose that the kind of deal he was proposing and doing was morally, ethically and statutorily barred. As discussed above, this argument is based on the theory that Defendant was Plaintiffs fiduciary before the parties entered into the contract. There is a triable issue as to when the fiduciary relationship began and therefore, there is also a triable issue on this claim.

Summary adjudication as to Cause of Action Three is also denied.

Evidence

The Court grants Plaintiffs' requests for judicial notice 1, 3, 4, 5, 6 and 7.

The Court denies Plaintiffs' request for judicial notice 2. While a complaint in San Mateo County Superior Court is subject to judicial notice, it includes only allegations and is thus, irrelevant to show whether Defendant did the things alleged in this case.

13. 9:00 AM CASE NUMBER: N25-2188
CASE NAME: PETITION OF: CITY OF MARTINEZ
HEARING ON PETITION IN RE: FOR ORDER TO ABATE SUBSTANDARD BUILDING AND APPOINTMENT OF RECEIVER
FILED BY: CITY OF MARTINEZ
TENTATIVE RULING:

The unopposed Petition of the City of Martinez is granted.

The court will sign the Revised Proposed Order Appointing Receiver lodged with the court on July 10, 2026.

14. 9:00 AM CASE NUMBER: N25-2190
CASE NAME: PETITION OF: CITY OF MARTINEZ
HEARING IN RE: PETITION FOR ORDER TO ABATE SUBSTANDARD BUILDING
FILED BY: CITY OF MARTINEZ
TENTATIVE RULING:

The unopposed Petition of the City for Order to Abate Substandard Building is granted.

The court will sign the Revised Proposed Order Appointing Receiver lodged with the court on July 10, 2026.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF D&A TRANS, INC.'S FURTHER RESPONSES TO REQUEST FOR ADMISSION, SET ONE**
FILED BY: BMW OF NORTH AMERICA, LLC,
TENTATIVE RULING:

Hearing is **continued** on court's motion to Dept. 20, Judge O'Connell, **on 8/13/26 at 9:00 a.m.** Tentative ruling will be available the prior court day beginning at 1:30 p.m.

from Dept. 20. Case remains assigned for all purposes to Dept. 32, Judge Hiramoto.

16. 9:01 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
*HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF D&A TRANS, INC.'S FURTHER
RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE
FILED BY: BMW OF NORTH AMERICA, LLC,
TENTATIVE RULING:

Hearing is **continued** on court's motion to Dept. 20, Judge O'Connell, on **8/13/26 at 9:00 a.m.** Tentative ruling will be available the prior court day beginning at 1:30 p.m. from Dept. 20. Case remains assigned for all purposes to Dept. 32, Judge Hiramoto.

Issue Conferences

17. 10:00 AM CASE NUMBER: MSC21-01859
CASE NAME: ELIZABETH DAVIS VS CREATE INTERIOR DESIGN
ISSUE CONFERENCE ALL PARTIES ARE TO APPEAR IN PERSON. IC INSTRUCTIONS FOR D32
PROVIDED.
FILED BY:
TENTATIVE RULING:

Parties to appear for Issue Conference.

Courtroom Clerk's Session

18. 1:30 PM CASE NUMBER: C23-02292
CASE NAME: BEN HADDAD VS. MONROE RE, LLC
ISSUE CONFERENCE ALL PARTIES ARE TO APPEAR IN PERSON. PARTIES SHALL PREPARE AN
ESTIMATE FOR TRIAL AND PRESENT TO ALL PARTIES.
FILED BY:
TENTATIVE RULING:

Vacated.

19. 1:30 PM CASE NUMBER: MSC19-01794
CASE NAME: MURPHY VS LU
ISSUE CONFERENCE
FILED BY:
TENTATIVE RULING:

Parties to appear for Issue Conference.

20. 1:30 PM CASE NUMBER: MSC21-01540

CASE NAME: BOWLES & Verna vs Pham, et al.

ISSUE CONFERENCE /READINESS CONFERENCE

FILED BY: BOWLES & Verna, LLP

TENTATIVE RULING:

Parties to appear for Issue Conference.

Law & Motion

Add On

21. 9:00 AM CASE NUMBER: C26-00155

CASE NAME: JANE DOE VS. DANTE WESTBROOK

*HEARING ON MOTION IN RE: QUASH SERVICE / CONT'D PER TR OF 7/10/26

FILED BY: WESTBROOK, DANTE

TENTATIVE RULING:

Before the Court is Defendants Dante Westbrook, Deborah Westbrook, and Dyna Electric, Inc.'s Motion to Quash Service.

For the following reasons, Defendant's Motion to Quash is **granted**.

Factual and Procedural Background

Plaintiff filed her Complaint on January 14, 2026, alleging sixteen causes of action. The Defendants are identified as Dante Westbrook, Deborah Westbrook, Hakim Abdullah, Dyna Electric, Inc., and Dyna Maids Inc.

On February 13, 2026, Plaintiff filed three separate Proofs of Service ("Proofs"), noting that the following parties were served: (1) Dante Westbrook, (2) Deborah Westbrook, and (3) Dyna Maids, Inc. Each of the three Proofs indicate that the Defendant at issue was served via personal service on January 17, 2026, at 7:09 p.m. The Proofs for Dante and Deborah provide descriptions of the person's served. The Proof for Dyna Maid indicates that the person served with the papers was Dante Westbrook, the owner/agent for Dyna Maid. All three Proofs indicate the address where service took place was: 4790 Snowy Egret Way in Oakley, California. Service was performed by

Jasmane Hayes, who is not a registered California process server.

Thereafter, on February 24, 2026, Plaintiff sought Entry of Default against the three Defendants. Default was entered against each Defendant that same date.

Defendants filed the instant Motion to Quash on March 16, 2026. On April 16, 2026, the Defendants filed a motion to set aside the defaults entered against them.

Legal Standard

California Code Civ. Proc., § 418.10 provides in relevant part that “A defendant . . . may serve and file a notice of motion . . . [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10(a).) Regardless of whether there are other grounds for personal jurisdiction, due process requires that an adjudication be preceded by proper notice. (*Mullane v. Central Hanover Bank & Trust Co.* (1950) 339 U.S. 306, 313.) “To establish personal jurisdiction, compliance with statutory procedures for service of process is essential...” (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 370.)

When a defendant brings a motion to quash service of summons due to defective service, the burden shifts to the plaintiff to prove facts that give the court jurisdiction. (*Coulston v. Cooper* (1966) 245 Cal.App.2d 866, 868.) Code Civ. Proc., § 418.10(d) further states that “no motion under this section, or under Section 473 or 473.5 when joined with a motion under this section . . . shall be deemed a general appearance by the defendant.” (Code Civ. Proc., § 418.10(d).)

Statutory Requirements of Service

“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction.” (*Renoir v. Redstar Corp.* (2004) 123 Cal.App.4th 1145, 1152 quoting *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) “‘Process’ is ‘a writ or summons issued in the course of judicial proceedings.’” (*Ibid.* citations omitted.) “Unless otherwise provided by statute, notice of a claim against a defendant in a civil action is given by service of a summons on the person.” (*Ibid.*) A court “in which an action is pending has jurisdiction over a party from the time summons is served on him....” (Cal. Code Civ. Proc. § 410.50 (a).) “Thus, in the ordinary civil action, unless there be other statutory authority, the issuance and service of summons is a prerequisite to acquisition of jurisdiction.” (*Pousson v. Superior Court of San Diego County* (1958) 165 Cal.App.2d 750, 752.)

The Civil Code prescribes four basis manners of service: (1) personal service, (2) 'substitute service' – wherein the papers are left with someone else coupled with mailing, (3) service by mail coupled with an acknowledgement of receipt, and (4) service by publication. (See Cal. Civ. Code § 415.10 et seq.) Here, the Proofs at issue indicate that service was made via personal service.

Dante and Deborah Westbrook

"A summons may be served by personal delivery of a copy of the summons and the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery." (Code Civ. Proc. § 415.10.) As outlined above, the Proofs indicate that Dante and Deborah were personally served at 7:09 p.m. on January 17, 2026, at 4790 Snowy Egret Way in Oakley, California.

Dante and Deborah both submit declarations indicating that they were never personally served with the papers regarding this matter. They both declare that while they own the Snowy Egret property, it is not either of their home address and they do not reside there.

Deborah Westbrook makes clear that she was not present at the Snowy Egret property "on January 17, 2026 at anytime." She avers that the "filed proof of service is false." Dante Westbrook states that he "was not present at the [Snowy Egret] property where service was claimed to have occurred." He declares: "No summons or complaint was personally served on me at that location or at any other location." Dante Westbrook notes that the Snowy Egret property is a rental property that is used "as a mailing address for [his] company Dyna Electric."

In addition to the above, Defendants submit the declaration of Brittiany Shields, who indicates that she is the tenant at the Snowy Egret property. She further states that on the date in question, January 17, 2026, she was "home all day and night," and that "Dante and Deborah Westbrook nor anyone other than my children and friend was present [there] at any time that day or night." She also indicates that no person "ever attempted to serve any legal documents or any form or paperwork to my residence."

All the above adequately undermines the statements made in the Proofs claiming that Dante and Deborah Westbrook were personally served on January 17 at the Snowy Egret property.

Plaintiff does not present any evidence to dispute the above. Instead, she appears to argue that a California Secretary of State document shows that the Snowy Egret

property is a registered address for the Dyna Maid, Inc. corporation as well as the officers, Dante and Deborah Westbrook. There are a few problems with this argument.

First, there is no admissible evidence supporting her position. Plaintiff does not request judicial notice of the Secretary of State document, nor does she provide a declaration authenticating it. Instead, she merely makes these arguments in her memorandum of points and authorities.

“Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) “Even if they were, the statements contained in the memorandum lack foundation and could not have been used by the court to evaluate the consideration.” (*Brehm Cmtys. v. Superior Court* (2001) 88 Cal.App.4th 730, 735.)

This observation applies to all other factual arguments made by Plaintiff – for example her statements regarding the Westbrook’s use of the Snowy Egret property.

Second, even if the Court were to review the Secretary of State document, it does nothing to show that either Westbrook was at that location on the date in question.

“When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process ‘the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.’” (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413)

Plaintiff has failed to meet this burden. “Until statutory requirements [for service of summons] are satisfied, the court lacks jurisdiction over a defendant.” (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808-09 multiple citations omitted.)

Dyna Maids, Inc.

The Proof of Service for Dyna Maids, Inc. indicates that the summons and complaint were purportedly served on Dante Westbrook as outlined above. As discussed in the prior section, Mr. Westbrook has presented evidence showing that he was not served with any papers as alleged in the Proof of Service. Again, Plaintiff has failed to provide any evidence or arguments refuting Mr. Westbrook’s evidence.

As such, Plaintiff has failed to meet her burden to show that service properly occurred.

Plaintiff's Procedural Arguments

As outlined above, Plaintiff does not substantively address any of Defendants arguments or evidence showing that they were not personally served on the date and at the location stated in the Proofs. Instead, Plaintiff makes several procedural arguments.

Initially, the Court notes that Plaintiff provides no legal citations or authority for any of the arguments. The only legal authority cited in Plaintiff's Opposition is Code of Civil Procedure § 418.10. She provides no case authority to support any of her arguments.

Every memorandum of points and authorities "**must contain** a statement of facts, **a concise statement of the law**, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. R. Ct. 3.1113 (b) emphasis added.) Rule 3.1113 prevents the "trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934.)

If Plaintiff intends to argue or rely on any authority other than the text of the statute at issue, she should cite such authority in her papers. Plaintiff is cautioned to provide proper legal support for any arguments in the future.

Timeliness

Plaintiff argues that the motion to quash is untimely as it needed to be filed 'at least on the last day to respond.' (Opp. at 4:12.) Code of Civil Procedure § 418.10(a) provides in pertinent part that a defendant may file and serve a motion to quash "on or before the last day of his or her time to plead or within any further time that the court may for good cause allow...."

First, a defendant is only required to respond to a complaint only **after** they have been properly served. "A party cannot be properly joined unless served with the summons and complaint ... Until statutory requirements are satisfied, the court lacks jurisdiction over a defendant." (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808.) Given that the Court finds that Defendants have presented sufficient evidence to demonstrate that they were never served with the summons and complaint, the clock did not begin to run on January 17 as Plaintiff claims. As such, the motion is timely.

Second, even if the Court were to find that the clock started to run on January 17, a motion to quash is timely if filed and served within the time to respond (i.e. 30-days) “or within any further time that the court may for good cause allow....” (Code Civ. Proc. § 418.10 (a).) The Court finds that there is good cause for Defendant’s filing of their motion to quash on March 16, 2026. Defendants have adequately shown that they were not given proper notice at that time. Nor is there any evidence indicating when Defendants became aware of the lawsuit.

Accordingly, the Court finds that Defendant’s Motion to Quash is timely.

Service of Motion to Quash

Plaintiff argues that the Motion was not “personally served” upon her “as required by code,” but was instead served via mail. She indicates there was no electronic service either.

Per Code, the notice of motion “shall be served in the same manner, and at the same times, prescribed by subdivision (b) of Section 1005.” Subdivision (b) of section 1005 does not require personal service of motion papers. In fact, it explicitly allows for service by mail, noting that “if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California....”

As for the reference to electronic service, electronic service of documents on unrepresented parties only applies when that party consents to receiving documents electronically. (Code Civ. Proc. § 1010.6(c).) The California Rules of Court specifically state that in cases with represented and unrepresented parties “each self-represented party or other person is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise.” (Cal. R. Ct. 2.253 (b)(3).) Plaintiff has not demonstrated that she has consented to electronic service at this time, so electronic service would not have been proper anyway.

Motion is Moot Due to Filing of Motions to Set Aside

“In 2002, the Legislature added subdivision (e) to section 418.10, the statute that currently governs motions to quash.” (*ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 211.) “Under subdivision (e), a defendant or cross-defendant may move to quash and ‘simultaneously answer, demur, or move to strike the complaint or cross-complaint.’” (*Ibid.*) “Moreover, ‘**no act**’ by a party who first makes a motion to quash,

‘including filing an answer, demurrer, or motion to strike,’ constitutes an appearance ‘unless the court denies the motion.’” (*Ibid.* emphasis added.) “If the trial court denies the motion, the defendant is ‘not deemed to have generally appeared until entry of the order denying the motion.’” (*Ibid.*)

Courts have interpreted the “no act” language above “broadly.” (*Id.* at 214.) “Subdivision (e) prevents the inadvertent waiver of objections to jurisdiction by delaying recognition of the party’s general participation in the litigation until after the jurisdictional issue is finally resolved.” (*State Farm General Ins. Co. v. JT’s Frames, Inc.* (2010) 181 Cal.App.4th 429, 441.) “A party may answer, demur, move to strike **and perform other actions related to the merits** without fear of accidentally waiving a potentially meritorious attack on personal jurisdiction.” (*Ibid.*)

“Subdivision (e)(1) of section 418.10 protects a defendant who moves to quash by providing that “no act” by that party shall constitute a general appearance. (*Roy v. Superior Court* (2005) 127 Cal.App.4th 337, 345.) “Nothing could be clearer: a defendant may move to quash coupled with *any* other action without being deemed to have submitted to the court’s jurisdiction.” (*Ibid.*)

Here, Defendants filed their motion to quash on March 16, 2026. Thereafter, on April 16, 2026, they filed their motion to set aside default. That act, while normally constituting a general appearance if filed on its own, does not constitute a general appearance because Defendants motion to quash was still pending. As such, the Defendants did not waive their jurisdictional arguments by filing their motion to set aside.

Plaintiff’s Request for Sanctions

Plaintiff requests sanctions in the amount of \$1,250 because she “had to file this Opposition....” Plaintiff does not cite any legal authority for her request for sanctions. Nor does she provide any support or explanation as to where she came up with the figure.

In addition, as outlined above, Plaintiff’s opposition fails to refute Defendant’s motion. As such, there is no basis for awarding sanctions for a non-meritorious opposition. Her request is denied.

Plaintiff also indicates that defense counsel improperly identified her by putting her name next to the Jane Doe nomenclature used in this case. That issue is not related to

the motion to quash and therefore irrelevant to the issues currently before the Court. Plaintiff's request for sanctions is denied.

Summary and Conclusion

Defendants present sufficient evidence to refute the claims in the Proofs of Service that they were personally served with the summons and complaint in this action. Plaintiff fails to present any evidence to support her position. In addition, all of Plaintiff's procedural arguments regarding the motion to quash are without merit.

As such, Defendants' Motion to Quash is **granted**.

"California courts have held that 'compliance with the statutory procedures for service of process is essential to establish personal jurisdiction. ... Thus, a default judgment [or default] entered against a defendant who was not served with a summons in the manner prescribed by statute is void.'" (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 214.) "The court may, upon ... its own motion, ... set aside any void judgment or order." (Code Civ. Proc. § 473(d).) Under section 473, subdivision (d), the Court may set aside a default "which is valid on its face, but void, as a matter of law, due to improper service." (*First American Title Ins. Co. v. Banerjee* (2022) 87 Cal.App.5th 37, 42.)

Given the above ruling of the Court finding service of process was not accomplished, the Defaults entered against the Defendants on February 24, 2026, are void as a matter of law. Accordingly, the Defaults against the Defendants are also set aside as of the date of this Order. The August 14, 2026, hearing on Defendants' motion to set aside is vacated.

22. 9:00 AM CASE NUMBER: C24-02795
CASE NAME: XAVIER ALVAREZ VS. JAMES GUDE, M.D
*HEARING ON MINOR'S COMPROMISE RE: XAVIER ALVAREZ
FILED BY: XAVIER ALVAREZ
TENTATIVE RULING:

Petitioner Gezal Rivera (as parent and Guardian ad Litem)'s Petition for Approval of Compromise of Xavier Alvarez's Claim ("Petition"), filed on June 26, 2026, is granted.

After careful examination of the Petition and proposed order, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Xavier Alarez's Claim and the Proposed Order lodged with the Court on June 26, 2026.